

Sanjay Verma vs Haryana Roadways on 29 January, 2014

Equivalent citations: AIR 2014 SUPREME COURT 995, 2014 (3) SCC 210, 2014 AIR SCW 856, (2014) 1 ACC 473

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Bench: Shiva Kirti Singh, Ranjan Gogoi, P. Sathasivam

REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 5256 OF 2008

SANJAY VERMA ... APPELLANT (S)

VERSUS

HARYANA ROADWAYS ... RESPONDENT (S)

JUDGMENT

RANJAN GOGOI, J.

1. This quantum appeal is by the claimant seeking further enhancement of the compensation awarded by the High Court of Uttaranchal at Nainital by its Order dated 27.03.2006.

2. The facts relevant for the purpose of the present adjudication may be noticed at the outset.

On 12.08.1998 the appellant-claimant was travelling from Ambala to Kurukshetra in a bus belonging to the Haryana Roadways and bearing registration No. HR-07PA-0197. On the way the driver of the bus lost control over the vehicle resulting in an accident in the course of which the claimant suffered multiple injuries. He was initially treated in the civil hospital Pehwa and thereafter transferred to the PGIMER, Chandigarh on 14.08.1998. The appellant underwent surgery on 16.09.1998 and eventually he was released from the hospital and referred to the Rehabilitation Centre, Jawaharlal Nehru Hospital, Aligarh. According to the claimant, apart from other injuries, he had suffered a fracture of the spinal cord resulting in paralysis of his whole body. In these circumstances the claimant filed an application before the Motor Accident Claim Tribunal claiming compensation of a total sum of Rs.53,00,000/- under different heads enumerated below:

- (i) Pecuniary loss Rs. 24,00,000.00
 - (ii) Expenditure incurred in treatment till now Rs. 2,00,000.00
 - (iii) Expenses which shall be incurred in future in treatment Rs. 3,00,000.00
 - (iv) Cost of attendant from the date of accident till he remains alive Rs. 2,00,000.00
 - (v) Passage and diet money Rs. 2,00,000.00
 - (vi) Pain and suffering and mental agony Rs. 20,00,000.00
- Total Rs. 53,00,000.00

3. The learned Tribunal by its Award dated 12.06.2000 held that the accident occurred due to the rash and negligent driving of the bus and that the claimant is entitled to compensation. The total amount due to the claimant was quantified at Rs. 3,00,000/- under the heads "Loss of Income", "reimbursement of medical expenses" and "pain and suffering". The learned Tribunal also awarded interest at the rate of 9% from 24.08.1999 i.e. the date of filing of the claim application till date of payment.

4. Aggrieved, the claimant filed an appeal before the High Court which enhanced the compensation to Rs.8,08,052/-. The High Court quantified the amount due to the claimant towards "loss of income" at Rs.6,19,500/-; Rs.1,38,552/- on account of "medical expenses" and an amount of Rs.50,000/- "for future treatment" and "pain and suffering". The High Court, however, reduced the interest payable to 6% per annum.